

Usha Devi v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 10 July 2014 · 2014 SCC OnLine All 10821 · Writ - C No. 34063 of 2014 · **Writ petition disposed of with liberty to apply for instalments under Clause 6.14, the authority to decide sympathetically within three weeks; no coercive steps for two months**

HEADNOTE

Clause 6.14 of the U.P. Electricity Supply Code, 2005 itself provides for payment of outstanding dues in easy instalments to consumers in financial distress (the Executive Engineer / DGM / General Manager granting up to two/three/four monthly instalments, the first not below 40% of the total). A residential consumer unable, due to financial distress, to pay dues of Rs. 1,37,472 was relegated to this remedy: the Court directed her to apply under Clause 6.14 within three weeks, the appropriate authority to decide sympathetically by a speaking order within a further three weeks, and stayed coercive recovery for two months or until disposal.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Easy-instalment facility for a residential consumer in financial distress

QUESTION

Can a consumer in financial distress be relegated to the Clause 6.14 instalment mechanism rather than a mandamus fixing instalments?

HOLDING

Yes. Clause 6.14 provides for payment of outstanding dues in instalments to consumers in financial distress (no waiver of surcharge; the first instalment not below 40%). The consumer was directed to apply under Clause 6.14 within three weeks, the appropriate authority to decide sympathetically by a speaking and reasoned order within a further three weeks, with no coercive recovery for two months or until disposal. ¶ (pp. 606-607)

LIMITING FACTS

Residential connection; dues of Rs. 1,37,472; financial distress; recovery proceedings initiated.

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress A consumer in financial distress is entitled to seek easy instalments under Clause 6.14, to be decided sympathetically, with interim protection from coercive recovery. ¶ (pp. 606-607)